

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JAMES MITCHELL,

Plaintiff,

- against -

THE CITY OF NEW YORK and
RAFAEL E. PEREZ,

Defendants.
-----X

Index No.

Plaintiff designates
New York County as
place of trial.

The basis of the
venue is the
location of occurrence.

S U M M O N S

Plaintiff resides at:
2155 Madison Ave., Apt. 7C
New York, NY 10030

County of New York

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 22, 2021


JOEL SCHMELKIN
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff
JAMES MITCHELL
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

The City of New York, 100 Church Street, New York, N.Y. 10007
P.O. Rafael E. Perez, c/o 6th Precinct, 233 W 10th St, New York, NY
10014

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JAMES MITCHELL,

Index No.

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK and
RAFAEL E. PEREZ,

Defendants.

-----X

Plaintiff, **JAMES MITCHELL**, complaining of the
defendants, by his attorneys, SCHMELKIN ASSOCIATES, P.C., hereby
sets forth and alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT/IDENTIFICATION OF PARTIES

1. That, at all times hereinafter mentioned, and on
January 13, 2020, the plaintiff, **JAMES MITCHELL**, was and still is
a resident of the County of New York, City and State of New York.

2. That, at all times hereinafter mentioned, and on
January 13, 2020, the defendant, **THE CITY OF NEW YORK**,
(hereinafter referred to as "**THE CITY**") was and still is a
domestic municipal corporation, duly organized and existing under
and by virtue of the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on
January 13, 2020, the defendant, **P.O. RAFAEL E. PEREZ**,
(hereinafter referred to as "**PEREZ**"), was and still is a resident
of the City and State of New York.

4. At all times hereinafter mentioned and on January 13, 2020, the defendant **PEREZ** was a police officer, and/or other agent, servant, and/or employee of the defendant **THE CITY** and was working within the scope and course of his employment with the defendant, **THE CITY**.

5. That, the plaintiff, **JAMES MITCHELL**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on March 19, 2020, respectively, within ninety (90) days of the date that the within causes of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **JAMES MITCHELL**, testified at an oral examination pursuant to the General Municipal Law on August 7, 2020; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

6. That the plaintiff was called by the defendants, their agents, servants, and/or the employees, on January 13, 2020 to provide information concerning a previous assault to the plaintiff, **JAMES MITCHELL**.

7. That on December 22, 2019, plaintiff, **JAMES MITCHELL** was assaulted in a bar known as the "Brass Monkey" located at 55 Little West 12th St. in the County of New York, City and State of

New York.

8. That on January 13, 2020, the plaintiff, **JAMES MITCHELL** provided information to the defendant **PEREZ**, to aid him in the investigation of the aforementioned assault.

9. That without probable cause, without reasonable cause and without justification, the plaintiff, **JAMES MITCHELL** was arrested by the defendant **PEREZ** and or other agents, servants, and/or employees of the defendant, **THE CITY**.

10. That the arrest took place at the sixth precinct when the plaintiff, **JAMES MITCHELL** was held for a long and unreasonable period of time, without probable cause.

11. That the plaintiff, **JAMES MITCHELL** was not given his "Miranda rights" and/or other rights afforded to him by the United States Constitution.

12. That the plaintiff, **JAMES MITCHELL** was processed and/or otherwise detained, against his will.

13. That the plaintiff, **JAMES MITCHELL** was at all times cognizant of his confinement, and did not consent to his confinement.

14. That the plaintiff, **JAMES MITCHELL** was fingerprinted and photographed by the defendants, their agents, servants, and/or employees.

15. That the plaintiff, **JAMES MITCHELL** was placed in handcuffs against a radiator in a tight/unreasonable, painful and

dangerous manner.

16. That the defendants had refused to question the plaintiff, **JAMES MITCHELL** to allow him to explain that he was not guilty of any crime.

17. That the plaintiff, **JAMES MITCHELL** was taken by the defendants, their agents, servants, and the employees against his will to central booking; where he remained for a long and unreasonable period of time.

18. That the plaintiff, **JAMES MITCHELL** was later advised that the district attorney refused to prosecute and/or declined to charge the plaintiff, **JAMES MITCHELL** with any crime whatsoever.

19. That the defendants owed a duty to the plaintiff, **JAMES MITCHELL**, under his Constitutional rights and had breached said duty; that as a result of the foregoing the defendants had violated and otherwise breached that duty; that as a direct and proximate result of that breach, the plaintiff, **JAMES MITCHELL** was caused to sustain serious and severe personal injuries.

AS AND FOR A FIRST CAUSE OF ACTION
(Assault and Battery)

20. That, the plaintiff, **JAMES MITCHELL** repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 19 with the same force and effect as if hereinafter more fully set forth at length herein.

21. That, on January 13, 2020, the plaintiff, **JAMES MITCHELL**, was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

22. That, the plaintiff, **JAMES MITCHELL**, was assaulted/battered without justification and without cause and without excuse.

23. That, the assault/battery took place on 233 West 10th Street, in the County of New York, City and State of New York and other locations wherein the plaintiff, **JAMES MITCHELL** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

24. That, at all times hereinafter mentioned and on January 13, 2020, and for sometime prior thereto, defendant, **PEREZ**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

25. That, the aforementioned assault and battery of the plaintiff, **JAMES MITCHELL**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

26. That, by reason of the foregoing, the plaintiff, **JAMES MITCHELL**, was injured; was rendered sick, sore, lame and

disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

27. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

28. That, by reason of the foregoing, the plaintiff, **JAMES MITCHELL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

(Negligent Hiring, Negligent
Training, Negligent
Retention and
Negligent Supervision)

29. That, the plaintiff, **JAMES MITCHELL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 28 with the same force and effect as if hereinafter more fully set forth at length herein.

30. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the

defendant, **THE CITY**.

31. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

32. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **PEREZ** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

33. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **PEREZ**, who was employed by the defendant, **THE CITY**.

34. That, by reason of the foregoing, the plaintiff, **JAMES MITCHELL**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

35. That this action falls within one or more of the

exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

36. That, by reason of the foregoing, the plaintiff, **JAMES MITCHELL** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

(False Arrest and
False Imprisonment)

37. That the plaintiff, **JAMES MITCHELL** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 36 with the same force and effect as if hereinafter more fully set forth at length herein.

38. That, on January 13, 2020, the plaintiff, **JAMES MITCHELL**, was caused to be falsely arrested and falsely imprisoned without probable cause.

39. That, the plaintiff, **JAMES MITCHELL**, was arrested without an arrest warrant.

40. That, the false arrest/false imprisonment took place in 233 West 10th Street, in the County of New York, City and State of New York and thereafter continuing at other locations wherein the plaintiff, **JAMES MITCHELL** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

41. That, the aforementioned false arrest and false imprisonment of the plaintiff, **JAMES MITCHELL** , was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

42. That, the aforementioned false arrest and false imprisonment of the plaintiff, **JAMES MITCHELL** , was carried out by defendant, **PEREZ**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

43. That, by reason of the foregoing, the plaintiff, **JAMES MITCHELL**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

44. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

45. That, by reason of the foregoing, the plaintiff, **JAMES MITCHELL** , has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION

(Violation of Fourth, Fifth and
Fourteenth Amendment Rights)

46. The plaintiff, **JAMES MITCHELL** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 45, with the same force and effect as if hereinafter more fully set forth at length herein.

47. That the plaintiff, **JAMES MITCHELL** did not commit any illegal act, nor did the individually named defendants have reason to believe he committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him; and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

48. That at all times hereinafter mentioned, the defendant, **PEREZ** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

49. Defendant, **PEREZ**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **PEREZ** knew or should have known of the fact that this

pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

50. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **JAMES MITCHELL** of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, **JAMES MITCHELL** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **JAMES MITCHELL** , to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **JAMES MITCHELL** , not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

51. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant while acting under color of state law and within the scope of his

employ.

52. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

53. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

54. That the deprivation of plaintiff, **JAMES MITCHELL's** Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

55. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

56. That the detaining of plaintiff, **JAMES MITCHELL** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

57. That the deprivation of plaintiff, **JAMES MITCHELL's** Constitutional rights was the result of the defendant, **PEREZ's** arrest of the plaintiff **JAMES MITCHELL** without probable cause.

58. That the deprivation of plaintiff **JAMES MITCHELL's** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

59. That the deprivation of plaintiff, **JAMES MITCHELL's** Constitutional rights was the result of the defendant, **PEREZ's** use of excessive force.

60. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **JAMES MITCHELL** .

61. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **JAMES MITCHELL** was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

62. That, by reason of the foregoing, the plaintiff **JAMES MITCHELL** was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

63. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard

for the safety of others, as well as having performed intentional acts.

64. That, by reason of the foregoing, the plaintiff, **JAMES MITCHELL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION

(Negligent Infliction
of Emotional Distress)

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, **JAMES MITCHELL**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

67. The acts and conduct of the defendants were the

direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

68. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

70. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

71. That, by reason of the foregoing, the plaintiff, **JAMES MITCHELL**, was injured; was rendered sick, sore, lame and disabled; was, and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

72. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

73. That, by reason of the foregoing, the plaintiff, **JAMES MITCHELL**, has sustained damages in an amount in excess of

the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SIXTH CAUSE OF ACTION

(Intentional Infliction
of Emotional Distress)

74. That the plaintiff, **JAMES MITCHELL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 73 with the same force and effect as if hereinafter more fully set forth at length herein.

75. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotional distress to plaintiff, **JAMES MITCHELL**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

76. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

77. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

79. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

80. That, by reason of the foregoing, the plaintiff, **JAMES MITCHELL**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

81. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

82. That, by reason of the foregoing, the plaintiff, **JAMES MITCHELL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR AN SEVENTH CAUSE OF ACTION
(Failure to Intervene)

83. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through

82 with the same force and effect as if more fully set forth at length herein.

84. That the defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of the plaintiff, whose constitutional rights were being violated in their presence by other officers.

85. Defendants failed to intervene to prevent the unlawful conduct described herein.

86. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

87. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

88. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

89. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

90. That, by reason of the foregoing, the plaintiff, **JAMES MITCHELL**, was injured; was rendered sick, sore, lame and disabled; and/or will be was caused to undergo medical treatment

and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

91 That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

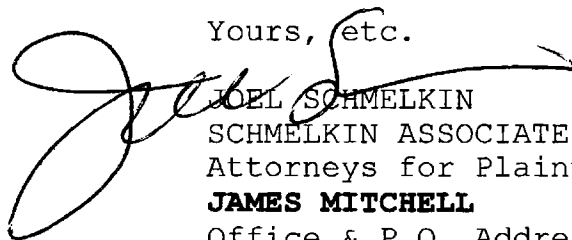
92 As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

93. That, by reason of the foregoing, the plaintiff, **JAMES MITCHELL** , has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **JAMES MITCHELL** , demands judgment against the defendants, on the First, Second, Third, Fourth Fifth, Sixth, and Seventh causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: New York, New York
March 22, 2021

Yours, etc.

A handwritten signature in black ink, appearing to read 'Joel Schmelkin', with a large, stylized flourish extending from the end of the signature.

JOEL SCHMELKIN
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff,

JAMES MITCHELL

Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
) .SS:
COUNTY OF NEW YORK)

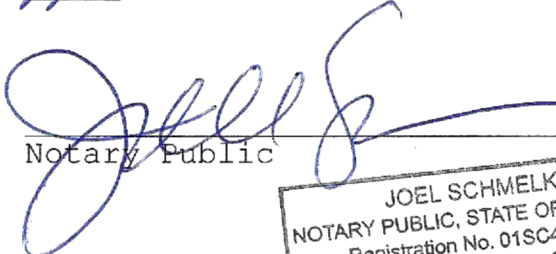
JAMES MITCHELL, being duly sworn deposes and says:

I am the plaintiff in this action. I have read the foregoing COMPLAINT and know its contents and the same are true to my knowledge and belief except as to matters therein stated to be alleged on information and belief and as to those matters I believe it to be true.

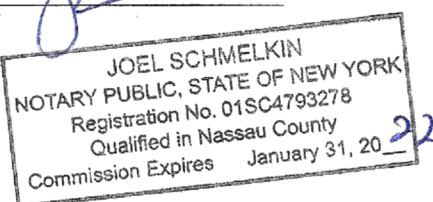


JAMES MITCHELL

Sworn to before me this
22 day of March, 2021



Notary Public



Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JAMES MITCHELL

Plaintiff,

-against-

THE CITY OF NEW YORK and
RAFAEL E. PEREZ

Defendants

SUMMONS AND VERIFIED COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

James Mitchell
Office and Post Office Address, Telephone
30 VESEY STREET, 4TH FLOOR
NEW YORK, N.Y. 10007
TEL: (212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: March 22, 2021

Signature

Print Signer's Name

JOEL SCHMELKIN

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

☐
NOTICE OF
ENTRYthat the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

☐
NOTICE OF
SETTLEMENTthat an Order of which the within is a true copy will be presented for settlement to the
Hon. , one of the judges of the within-named Court,
at
on 20 , at M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

Office and Post Office Address, Telephone
30 VESEY STREET, 4TH FLOOR